

UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK

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NAIMAH JACK,

Plaintiff,

-against-

CITY OF NEW YORK, THOMAS NUZIO, STEVEN TROISE,
BRIAN FERGUSON, VINCENT GERARD, WILLIAM INNES,
GREGORY LOCKE, MATTHEW HARRINGTON, and JOHN
and JANE DOE 1 through 10, individually and in their official
capacities, (the names John and Jane Doe being fictitious, as the
true names are presently unknown),

Defendants,
-----X

**AMENDED
COMPLAINT**

09 Civ. 10274 (JSR)

Jury Trial Demanded



Plaintiff NAIMAH JACK, by her attorneys, Leventhal & Klein, LLP, complaining of the
defendants, respectfully alleges as follows:

Preliminary Statement

1. Plaintiff brings this action for compensatory damages, punitive damages and attorney's fees pursuant to 42 U.S.C. §§1983 and 1988 for violations of her civil rights, as said rights are secured by said statutes and the Constitutions of the State of New York and the United States.

JURISDICTION

2. This action is brought pursuant to 42 U.S.C. §§ 1983 and 1988, and the Fourth and Fourteenth Amendments to the United States Constitution.

3. Jurisdiction is found upon 28 U.S.C. §§1331, 1343 and 1367.

VENUE

4. Venue is properly laid in the Southern District of New York under 28 U.S.C. §

1391(b), in that this is the District in which the claim arose.

JURY DEMAND

5. Plaintiff respectfully demands a trial by jury of all issues in this matter pursuant to Fed. R. Civ. P. 38 (b).

PARTIES

6. Plaintiff NAIMAH JACK is a twenty-nine year old African American woman residing in Brooklyn, New York.

7. Defendant CITY OF NEW YORK was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.

8. Defendant CITY OF NEW YORK maintains the New York City Police Department (hereinafter referred to as "NYPD"), a duly authorized public authority and/or police department, authorized to perform all functions of a police department as per the applicable sections of the aforementioned municipal corporation, CITY OF NEW YORK.

9. That at all times hereinafter mentioned, the individually named defendants, THOMAS NUZIO, STEVEN TROISE, BRIAN FERGUSON, VINCENT GERARD, WILLIAM INNES, GREGORY LOCKE, MATTHEW HARRINGTON, and JOHN and JANE DOE 1 through 10, were duly sworn police officers of said department and were acting under the supervision of said department and according to their official duties.

10. That at all times hereinafter mentioned the defendants, either personally or through their employees, were acting under color of state law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages and/or practices of the State of New York and/or the City of New York.

11. Each and all of the acts of the defendants alleged herein were done by said

defendants while acting within the scope of their employment by defendant CITY OF NEW YORK.

FACTS

12. On January 13, 2008, plaintiff NAIMAH JACK was a lawful pedestrian in front of 17 West 19th Street, New York, New York. Plaintiff and her cousins Atabei Abreu, Cemi Abreu, and Guamane Abreu, had just left the nightclub located at said location. Plaintiff's cousin Atabei Abreu had a verbal dispute with another woman in the club. A private security guard, purportedly employed by the club, escorted plaintiff's cousin out of the club with excessive force and threw her to the ground outside the club.

13. When plaintiff saw the security guard manhandle her female cousin and throw her to the ground, plaintiff stated, in sum and substance, stop, you're hurting her, we're all leaving. The defendant police officers ran at plaintiff, grabbed plaintiff around her neck, threw her to the ground, restrained her, and placed handcuffs on her wrists, or otherwise stood by while this unjustified seizure occurred, yet failed to intervene.

14. Thereafter, the defendant officers directly, or by failing to intervene, imprisoned plaintiff until later that day when plaintiff was arraigned on baseless charges filed under docket number 2008NY003837 in New York County Criminal Court; said charges having been filed based on the false allegations of the defendants. The defendants initiated said prosecution with malice, and otherwise caused said prosecution to be commenced against plaintiff for the purpose of obtaining a collateral objective outside the legitimate ends of the legal process, to wit: to cover up the above mentioned acts of misconduct.

15. Defendants' allegations, that plaintiff, who had never been arrested prior to this incident and has not been arrested since, struck defendant NUZIO in the face with an open fist,

and tucked her arms into her body and twisted her body from side to side when defendant TROISE attempted to arrest plaintiff for striking defendant NUZIO, were false.

16. On March 20, 2008, the false charges were adjourned in contemplation of dismissal and subsequently dismissed, sealed, and otherwise deemed a legal nullity.

17. All of the above occurred while other defendant police officers failed to intervene in the illegal conduct described herein.

18. All of the above occurred as a direct result of the unconstitutional policies, customs or practices of the City of New York, including, without limitation, the inadequate screening, hiring, retaining, training and supervising its employees.

19. As a result of the foregoing, plaintiff NAIMAH JACK sustained, *inter alia*, physical injuries, emotional distress, embarrassment, humiliation, and deprivation of her liberty and her constitutional rights.

AS AND FOR A FIRST CAUSE OF ACTION
(Deprivation of Rights Under 42 U.S.C. § 1983)

20. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs "1" through "19" with the same force and effect as if fully set forth herein.

21. All of the aforementioned acts of defendants, their agents, servants and employees were carried out under the color of state law.

22. All of the aforementioned acts deprived plaintiff NAIMAH JACK of the rights, privileges and immunities guaranteed to citizens of the United States by the Fourth and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. §1983.

23. The acts complained of were carried out by the aforementioned individual

defendants in their capacities as school safety agents/police officers, with the entire actual and/or apparent authority attendant thereto.

24. The acts complained of were carried out by the aforementioned individual defendants in their capacities as school safety agents/police officers, pursuant to the customs, usages, practices, procedures, and the rules of the CITY OF NEW YORK and the New York City Police Department, all under the supervision of ranking officers of said department.

25. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

AS AND FOR A SECOND CAUSE OF ACTION
(False Arrest/Unlawful Imprisonment under 42 U.S.C. § 1983)

26. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "25" with the same force and effect as if fully set forth herein.

27. Defendants arrested plaintiff NAIMAH JACK without probable cause, causing her to be detained against her will for an extended period of time and subjected to physical restraints.

28. Defendants caused plaintiff NAIMAH JACK to be falsely arrested and unlawfully imprisoned.

AS AND FOR A THIRD CAUSE OF ACTION
(Excessive Force under 42 U.S.C. § 1983)

29. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs numbered "1" through "28" with the same force and effect as if fully set forth herein.

30. The level of force employed by defendants was excessive, objectively unreasonable and otherwise in violation of plaintiff NAIMAH JACK'S constitutional rights.

31. As a result of the aforementioned conduct of defendants, plaintiff NAIMAH JACK was subjected to excessive force and sustained physical injuries and emotional distress.

AS AND FOR A FOURTH CAUSE OF ACTION

(First Amendment Claim under 42 U.S.C. § 1983)

32. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs numbered "1" through "31" with the same force and effect as if fully set forth herein.

33. The acts of the defendants were in retaliation for plaintiff's exercise of her First Amendment freedom of speech and expression, and not in response to any unlawful acts of the plaintiff.

34. As a result of the aforementioned conduct of defendants, plaintiff ERIKA DESHAZO was subjected to retaliation for the exercise of her First Amendment rights.

AS AND FOR A FIFTH CAUSE OF ACTION

(Malicious Abuse of Process under 42 U.S.C. § 1983)

35. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "34" with the same force and effect as if fully set forth herein.

36. Defendants maliciously issued criminal process against plaintiff NAIMAH JACK by causing her to be arraigned and prosecuted in Criminal Court.

37. Defendants caused plaintiff NAIMAH JACK to be prosecuted in order to obtain a collateral objective outside the legitimate ends of the legal process, to wit: to cover up their abuse of authority and excessive force.

AS AND FOR A SIXTH CAUSE OF ACTION

(Failure to Intervene under 42 U.S.C. § 1983)

38. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "37" with the same force and effect as if fully set forth herein.

39. Defendants had an affirmative duty to intervene on behalf of plaintiff NAIMAH JACK, whose constitutional rights were being violated in their presence by other police officers.

40. The defendants failed to intervene to prevent the unlawful conduct described herein.

41. As a result of the foregoing, plaintiff NAIMAH JACK was subjected to excessive force, her liberty was restricted for an extended period of time, she was put in fear of her safety, she was humiliated and subjected to handcuffing and other physical restraints, and detained and prosecuted without probable cause. Further, plaintiff sustained physical injuries and emotional distress.

AS AND FOR A SEVENTH CAUSE OF ACTION
(Supervisory Liability under 42 U.S.C. § 1983)

42. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "41" with the same force and effect as if fully set forth herein.

43. The supervisory defendants personally caused plaintiff's constitutional injury by being deliberately or consciously indifferent to the rights of others in failing to properly supervise and train their subordinate employees.

AS AND FOR AN EIGHTH CAUSE OF ACTION
(Municipal Liability under 42 U.S.C. § 1983)

44. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "43" with the same force and effect as if fully set forth herein.

45. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

46. The aforementioned customs, policies, usages, practices, procedures and rules of

the City of New York Police Department included, but were not limited to, physically abusing citizens and then committing perjury and/or manufacturing evidence, or otherwise engaging in a policy of falsification, in an effort to convict such individuals. In addition, the City of New York engaged in a policy, custom or practice of inadequate screening, hiring, retaining, training and supervising its employees that was the moving force behind the violation of plaintiff NAIMAH JACK'S rights as described herein. As a result of the failure of the City of New York to properly recruit, screen, train, discipline, and supervise its officers, including the individual defendants, defendant CITY OF NEW YORK has tacitly authorized, ratified, and has been deliberately indifferent to, the acts and conduct complained of herein.

47. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York Police Department constituted deliberate indifference to the safety, well-being and constitutional rights of plaintiff NAIMAH JACK.

48. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by plaintiff NAIMAH JACK as alleged herein.

49. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the moving force behind the Constitutional violations suffered by plaintiff NAIMAH JACK as alleged herein.

50. As a result of the foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department, plaintiff NAIMAH JACK was unlawfully seized, detained, imprisoned, prosecuted, and subjected to physical abuse.

51. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating plaintiff NAIMAH JACK'S constitutional rights.

52. All of the foregoing acts by defendants deprived plaintiff NAIMAH JACK of federally protected rights, including, but not limited to, the right:

- A. Not to be deprived of liberty without due process of law;
- B. To be free from false arrest/unlawful imprisonment;
- C. To be free from excessive force;
- D. To be free from retaliation for exercise of their First Amendment rights;
- E. To be free from the failure to intervene;
- F. To be free from malicious abuse of process;
- G. To receive equal protection under law.

53. As a result of the foregoing, plaintiff NAIMAH JACK is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury.

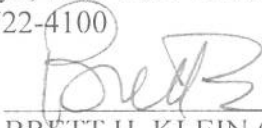
WHEREFORE, plaintiff NAIMAH JACK demands judgment and prays for the following relief, jointly and severally, against the defendants:

- (A) full and fair compensatory damages in an amount to be determined by a jury;
- (B) punitive damages in an amount to be determined by a jury;
- (C) reasonable attorney's fees and the costs and disbursements of this action; and
- (D) such other and further relief as appears just and proper.

Dated: Brooklyn, New York
March 19, 2010

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45 Main Street, Suite 230
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By:


BRETT H. KLEIN (BK4744)

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Defendants,

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